AC 42758

JEFFREY GOULD | APPELLATE COURT

v. | STATE OF CONNECTICUT

COMMISSIONER OF CORRECTION | February 8, 2021

PETITION FOR CERTIFICATION FOR REVIEW

Pursuant to Practice Book § 84-1, the petitioner, Jeffrey Gould ("Petitioner"), respectfully requests this court to certify for review the appellate court's dismissal of the appeal in *Gould v. Warden,* 2019 WL 624516 (Conn.Super.)(A 4-16), appeal dismissed per curiam, *Gould v. Commissioner of Correction*, 202 Conn.App. 901 (2021)(A 3).

QUESTIONS PRESENTED FOR REVIEW

1. Whether a per curiam dismissal by the appellate court was appropriate where Petitioner asserted the habeas court improperly mischaracterized the nature of his habeas claim, made factual findings not supported by the record, and then based its legal conclusion of effective representation on the mischaracterization and unsupported factual findings?

2. Whether the habeas court properly concluded that defense counsel's performance was constitutionally sufficient when the habeas court made factual findings not supported by the record, mischaracterized the Petitioner's ineffectiveness claim, and failed to measure counsel's performance against a correct statement of Petitioner's claim, instead measuring counsel's performance in relation to the mischaracterization of Petitioner's habeas claim?

BASIS FOR CERTIFICATION

1. Review of question number 1 is warranted because a per curiam dismissal undermines public confidence and faith in the fairness and integrity of judicial proceedings when the issues presented on appeal include the legitimacy of the habeas court's factual findings and the accuracy of the habeas court's statement of the claim rather than a mere disagreement with the outcome of the habeas court's application of *Strickland v. Washington*, 466 U.S. 668 (1984), to the particular facts of the petitioner's case.

2. Review of question number 2 is warranted to vindicate Petitioner's constitutional and statutory rights to petition for habeas corpus; Petitioner was denied a meaningful adjudication of his habeas claim when the habeas court relied on facts not supported by the record, mischaracterized his claim, and then assessed the adequacy of counsel's performance in relation to the claim as mischaracterized.

SUMMARY OF THE CASE

A. The Criminal Proceedings

Police were summoned to the home of the petitioner, Jeffrey Gould ("Petitioner"), after his 25-year-old stepdaughter, A.M., accused him of sexually assaulting her. A.M. claimed that she and Petitioner were sharing a drink in the back yard when Petitioner suddenly pushed her from behind to her knees, and then pulled her pants down and sexually assaulted her in that position.

Petitioner was charged with sexual assault in the first degree. At the trial, defense counsel, Paul Catalano, attempted to impeach A.M. with discrepancies among various statements she made to emergency and hospital personnel that were inconsistent with each other and with her testimony at the trial. He also pointed out the inconsistency between her testimony that she was struggling on the ground in the dirt during the assault and the complete absence of dirt on the clothing she claimed she was wearing. Catalno also elicited testimony regarding a recent eviction from her apartment that left A.M. needing to move back home with her two children.

In addition to A.M.'s testimony, the state introduced photographs taken at the hospital showing bruises and scrapes on A.M.'s body and dried blood on the toes of her right foot. The state also offered evidence that Petitioner's DNA was consistent with DNA in a vaginal swab from A.M., and with DNA extracted from scrapings under her fingernails.

Finally, the state introduced two statements Petitioner gave to police. In the first statement, Petitioner denied he had ever had sexual intercourse with A.M.. The second statement, handwritten by a police officer, described a consensual sexual encounter on the deck behind the house initiated by AM.

Aside from attempting to undermine A.M.'s recounting of events, Catalano did not offer any witnesses or evidence in Petitioner's defense.

In his closing argument, Catalano rehashed the inconsistencies in A.M.'s statements and testimony, and suggested the physical evidence was more consistent with the events described in Petitioner's second statement to police, i.e., that a consensual sexual encounter occurred on the deck during which Petitioner cut his toe on a glass that fell to the floor and broke during the incident. He claimed A.M. found herself in a bind after having consensual sex with her step-father because, having just been evicted from her apartment, she was worried about having a place to stay. Considering her predicament, he said, "is she going to say I had sex with your husband? Of course not. She's gotta say something else." So she said, "your husband tried to have sex with me." He explained away Petitioner's initial statement to police denying sexual intercourse as the predictable lie any man in Petitioner's situation would tell. He said, "when you're asked by the Police Officer what's going on and you're married you're going to say nothing." He concluded with: "[w]hatever happened wasn't good from [Petitioner's] standpoint either. He shouldn't have been drinking with his stepdaughter. He shouldn't have been having sex with his stepdaughter. But that's not the crime."

The jury returned a guilty verdict. The only issue raised in Petitioner's direct appeal related to the dismissal of a juror for cause. The conviction was affirmed. *State v. Gould*, 155 Conn.App. 392 (2015), aff'd, 322 Conn. 519 (2016).

B. The Habeas Proceedings

During the 16 months before Petitioner's trial, Petitioner wrote Catalano over 2,500 pages of letters in which he explained that A.M. had taken advantage of his state of extreme intoxication to stage a sexual assault in retaliation for Petitioner and his wife filing a petition seeking custody of A.M.'s children, and as a ploy to secure a permanent place for herself and her children in her mother's house by driving Petitioner out. Petitioner told Catalano that A.M. had initiated the sexual assault on the deck by climbing on top of him as he sat almost comatose in a chair, that she had somehow managed to flip a table over, sending glass to the floor where it broke, and that he cut his toe on the glass as she dragged him across the deck and down the stairs into the yard where she completed the sexual assault. Petitioner outlined in painstaking detail how the physical evidence supported his claim and he identified all the evidence that was available to prove this defense. He also denied ever telling police that he and A.M. had consensual sexual intercourse on the deck.

Not only did Catalano not present this defense at Petitioner's trial, he argued exactly the opposite to the jury, specifically asking them to believe that Petitioner had engaged in consensual sexual intercourse with A.M..

In count one of his habeas petition, Petitioner specified twenty-one specific ways in which Catalano had failed to do what was necessary to investigate and present the defense had laid out in his 2,500 pages of correspondence, including failing to present Petitioner's testimony, failing to investigate whether A.M.'s clothing contained forensic evidence that would have contradicted her claims, failing to present evidence of A.M.'s bias and motive, failing to adequately impeach A.M.'s testimony, failing to move to suppress the second statement, and failing to impeach the credibility of the officer – Sergeant Dean Cyr -- who recorded in his own hand Petitioner's supposed admission that he and A.M. had

consensual sex on the deck.[1]

At the habeas trial, Catalano acknowledged Petitioner had consistently asserted, both in person and in copious letters, that A.M. had sexually assaulted him. He claimed he presented that defense by "pok[ing] holes" in A.M.'s testimony. He denied presenting a consent defense, and he denied telling the jury that the sexual encounter was consensual. He did not move to suppress the statement Cyr recorded in his own handwriting because he believed it was helpful to Petitioner -- it did not admit to a crime and it contained Petitioner's "version of what occurred that day."

Catalano testified that he advised Petitioner not to testify because he believed they had poked as many holes in the state's case as possible. Catalano was also worried that Petitioner might inadvertently open the door to impeachment with a prior conviction. After explaining how that might happen, however, Catalano believed Petitioner understood how to avoid that risk. Catalano did not express any concerns about Petitioner's credibility as a basis for his advice that Petitioner not testify.

Petitioner testified at great length, reiterating what he had provided to Catalano in his 2,500 pages of correspondence. He described being so intoxicated he could barely stand, a level of intoxication corroborated by testimony at the criminal trial. He explained that A.M.'s assault of him in the yard was not sexual intercourse, but rather consisted of A.M. manually pushing his penis into her vagina while Petitioner lay almost comatose on the ground in an effort to ensure that Petitioner's DNA ended up inside her so that she could claim she had been assaulted. He asserted the physical evidence supported his claim that A.M. initiated a sexual assault on the deck, Petitioner cut his foot on a glass broken at that time, and A.M. completed the assault in the yard; there were photographs of blood stains

[1] Petitioner also alleged prosecutorial impropriety, trial court error and ineffectiveness of appellate counsel. Petitioner did not pursue those claims on appeal.

from the cut on Petitioner's foot on the deck floor and stairs, as well photographs of dried blood on A.M.'s toes, all of which suggested A.M. broke the glass before the assault in the yard, not on the way into the house after the assault in the yard as she claimed. Petitioner also identified the evidence Catalano could have gathered to prove A.M.'s motive to stage the sexual assault in retaliation for Petitioner and his wife's petition for custody of A.M.'s children and as a ruse to get Petitioner kicked out of his own home. Petitioner also explained the apparent inconsistencies in the two statements to police. By denying he had sexual intercourse with A.M., Petitioner did not deny a sexual encounter had taken place. And he denied ever telling Sergeant Cyr that he and A.M. had consensual sexual intercourse on the deck, claiming Cyr simply fabricated that part of the statement.

Sergeant Cyr testified as well, denying he fabricated any part of the statement. He admitted being disciplined for conduct unbecoming an officer after an investigation determined he had purchased and consumed alcohol in excess with an underage woman, putting himself in a compromising position in front of subordinate officers. He denied lying during the investigation, but admitted investigators had made that finding.

The habeas court denied Petitioner's claims. The court summarized Petitioner's claim as: "A.M. was actually the aggressor and used physical force on him." The court found Catalano tried to show that the physical evidence contradicted A.M.'s story. The problem for Catalano, however, was that Petitioner was "considerably larger" than AM, and the jury would not have perceived Petitioner as being overpowered and sexually assaulted.

In addition, Petitioner had given conflicting statements to police, including one in which he described the encounter as consensual. The habeas court deemed Petitioner's description of what happened to be not credible; Petitioner had given conflicting statements to police, and his story had evolved from no sexual contact, to consensual intercourse, to him being the victim.

The court found it "borders on preposterous to posit that A.M. overpowered" Petitioner. Therefore, the court found there was "ample support" for Catalano's conclusion that "it would have been "highly detrimental to the defense" for Petitioner to testify. Finally, the court accepted Catalano's explanation that he did not move to suppress the Cyr statement because the statement "contained the petitioner's version of the events."

The habeas court concluded that Catalano had not performed deficiently by not offering a defense that A.M. sexually assaulted Petitioner.

C. <u>Appellate Proceedings</u>

Believing the habeas court had mischaracterized his claims and had made factual findings not supported by the record, Petitioner filed a motion requesting articulation on multiple points. The court denied the motion, and, except for one point, this Court denied Petitioner's motion for review. This Court ordered the habeas court to articulate whether: (1) Catalano presented the defense that A.M. assaulted Petitioner; (2) presented the defense that the sexual encounter was consensual; or (3) presented some other defense.

In response, the habeas court found that Catalano "did *not* present a defense … that A.M. had sexually assaulted him," and "did *not* present a defense of consensual sex." Instead, during the trial, Catalano "attacked A.M.'s story and credibility, thereby striving to show that the state had failed in its burden of proof beyond a reasonable doubt." Then, during his closing, Catalano argued consent because that was the only "viable alternative given that mixture of DNA, and that A.M.'s testimony and the physical evidence showed that the sexual assault story was not true."

In his briefs on appeal, Petitioner argued the habeas court abused its discretion in denying certification to appeal because: (1) the court relied on several factual findings that were not supported by the record; (2) the court mischaracterized Petitioner's claim; and (3) an assessment of Catalano's performance against Petitioner's actual claim proved that

Catalano had performed deficiently by not offering the defense that A.M. sexually assaulted Petitioner and that Petitioner was prejudiced by Catalano's deficient performance.

First, Petitioner challenged the habeas court's finding that Catalano did not offer a defense of consensual sex, but instead attempted to cast doubt on A.M.'s credibility. Petitioner argued the habeas court's finding was not supported by the record, and he cited as examples Catalano asking A.M. during cross-examination whether she had engaged in a seductive dance, whether she had taken off her shirt as part a "dance or any other ritual," whether she had "tried to get on" or kiss Petitioner, whether she had made up a detail about Petitioner pulling her hair because "at this point in the day I'd better figure out what I'm going to tell my mother," and whether she was "making up the rape at this point and you need some sympathy from that nurse." Those questions were designed to suggest that A.M. consented to the sexual encounter.

Second, Petitioner argued the court had mischaracterized his claim. The habeas court describe Petitioner's claim as "A.M. used physical force to overpower and sexually assault him." As he had in the motion for articulation, Petitioner noted that he had never claimed A.M. used physical force to overpower him; the basis of his claim was that he was too inebriated to even realize what was happening, and that A.M. sexually assaulted him while he was so intoxicated he was unable to resist.

Petitioner also asserted the record did not support the habeas court's finding that Petitioner was "considerably larger and heavier" than A.M. -- the medical records from A.M. hospital visit recorded her weight at 91 kilograms, or slightly over 200 pounds, and Petitioner estimated his own weight at 230 pounds. In addition, Petitioner challenged the habeas court's finding that Catalano had reasonably concluded it would have been "highly detrimental" for Petitioner to testify; Catalano never expressed any doubts about Petitioner's credibility and said his only hesitation was the possibility Petitioner would

inadvertently open the door to impeachment with a prior conviction. Petitioner also challenged the habeas court's finding that Catalano reasonably declined to move to suppress the Cyr statement because the statement embodied Petitioner's position that the sexual encounter occurred on the deck and was consensual; the record proved Catalano should have known Petitioner's position was that the sexual encounter was *not* consensual -- it was an assault -- and the assault occurred not on the deck -- it occurred in the yard. These infirmities in the court's findings had been raised in the motion for articulation.

Petitioner argued that the mischaracterization of Petitioner's claim as 'A.M. used physical force to overpower him,' combined the reliance on facts not supported by the record, enabled the habeas court to characterize Petitioner's claim as preposterous, which in turn supported the court's conclusions that Catalano performed effectively in deciding not to advance a preposterous defense that A.M. assaulted Petitioner.

Finally, Petitioner argued that, when assessed against Petitioner's claim as accurately stated, and discounting factual findings not supported by the record, Catalano performed deficiently by not presenting a defense that A.M. took advantage of his extreme state of intoxication to stage a sexual assault in retaliation for Petitioner's and his wife's petition for custody of her children and in hopes of securing a permanent place for herself and her children in her mother's home by driving Petitioner out. Despite largely inconsequential inconsistencies in her unverified hearsay statements, in the absence of a reason to believe A.M. would suddenly decide to have sexual intercourse with her step-father, the jury would have no reason to disbelieve A.M.'s testimony that she was sexually assaulted. Catalano performed deficiently by failing to provide the jury with that reason, and Petitioner was prejudiced thereby.

ARGUMENT IN SUPPORT OF CERTIFICATION

Petitioner did not just disagree with the outcome of the habeas court's *Strickland*

analysis. He asserted the habeas court inaccurately recapitulated Petitioner's and Catalano's testimony, and then fundamentally misstated Petitioner's claim in a way that enabled the court to characterize it as preposterous, in turn enabling the court to conclude Catalano reasonably declined to offer a preposterous defense.

When a petitioner raises challenges of this nature, a per curiam dismissal leaving them unaddressed undermines public confidence and faith in the fairness and integrity of our judicial proceedings.

This Court should remedy the inadequacy of the appellate court's per curiam dismissal by reviewing the denial of the habeas petition on the merits, or by remanding the case with an order that the appellate court do so.

The habeas court assessed the adequacy of counsel's performance in relation to a claim Petitioner did not make, and in support of its legal conclusions relied on facts not supported by the record. As a result, the habeas court denied Petitioner a meaningful adjudication of his habeas claims. As set forth in Petitioner's briefs on appeal, Catalano, against Petitioner's express wishes, offered a defense based on A.M. consenting to sexual intercourse with her step-father just feet from her mother's bedroom door. Catalano's decision not to offer a defense based on A.M.'s motive to stage a sexual assault of herself by Petitioner was unreasonable because, in the absence of a reason to believe A.M. suddenly decided to have consensual sex with her step father, the jury had no reason to disbelieve A.M.'s testimony that she was the victim of a sexual assault.

In order to vindicate Petitioner's right to a meaningful adjudication of his habeas claims, this Court should review the merits of his claims, or should remand the case with an order for the appellate court to do so.

CONCLUSION

For all the forgoing reasons, Petitioner urges this Court to certify the appeal for review.

Respectfully submitted,

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CERTIFICATION

Pursuant to Practice Book §§ 62-7, 10-13, 10-14 and 66-3, I certify that a copy of the petition for certification for review and appendix were delivered on February 8, 2021, to all counsel and self-represented parties of record: by U.S. mail to the Honorable Hunchu Kwak, Superior Court, G.A. 10, 112 Broad Street, New London, CT 06320; by electronic mail to Brett Aiello, Deputy Assistant State's Attorney, Office of the Chief State's Attorney, 300 Corporate Place, Rocky Hill, CT 06067, (tel) 860-258-5807, (fax) 860-258-5858, brett.aiello@ct.gov; and by U.S. mail to Petitioner, Jeffrey Gould, #146239, MacDougall-Walker Correctional Institution, (MacDougall Building), 1153 East Street South, Suffield, CT 06080.

I certify that this document does not contain any names or other personal identifying information that is prohibited from disclosure by rule, statute, court order or case law. I certify that the petition and appendix served as described above are true copies of the petition and appendix submitted electronically. I also certify that the motion complies with all the provisions of the Practice Book, including §§ 62-7, 66-2, 66-3, 84-4 and 84-5.

/s/ Deren Manasevit